

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001

June 13, 2018



The Honorable Presiding Daniel J. Buckley
Judge of the Superior Court
County of Los Angeles
111 North Hill Street
Los Angeles, CA 90012

Re: Gilbert Bao
CDC No: P77497
Case No: BA180230-02
Date of Sentence: April 5, 2000

Dear Honorable Daniel J. Buckley:

The purpose of this letter is to provide the court with authority to resentence Gilbert Bao pursuant to Penal Code Section 1170, subdivision (d)(1). Section 1170, subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Inmate Bao has programmed exceptionally well and has no serious disciplinary reports since his commitment date of April 21, 2000. In 2003 inmate Bao earned his High School Diploma while attending classes at the Substance Abuse Treatment Facility and State Prison, Corcoran. Inmate Bao is currently assigned as a Mentor through the 2080 hour Offender Mentor Certification Program. In 2018 he passed the California state exam to become a certified drug and alcohol counselor, as part of this program inmate Bao will receive assistance in securing employment as a certified drug and alcohol counselor upon release.

Having reviewed the enclosed documentation it appears that inmate Bao's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:

Abstract of Judgment – Prison Commitment – Indeterminate
Diagnostic Study and Evaluation Report

cc: Sherri R. Carter, Los Angeles County Court Executive Officer
Los Angeles County District Attorney's Office
Los Angeles County Public Defender's Office